POLICY BRIEF | RECORDS & INFORMATION MANAGEMENT

Ontario Ministry FOI Performance Review & Branch RIM Toolkit, 2023–2025

Yuxin (Cindy) Wang | Independent practice project | Data: IPC Statistical Reports 2023–2025

Summary

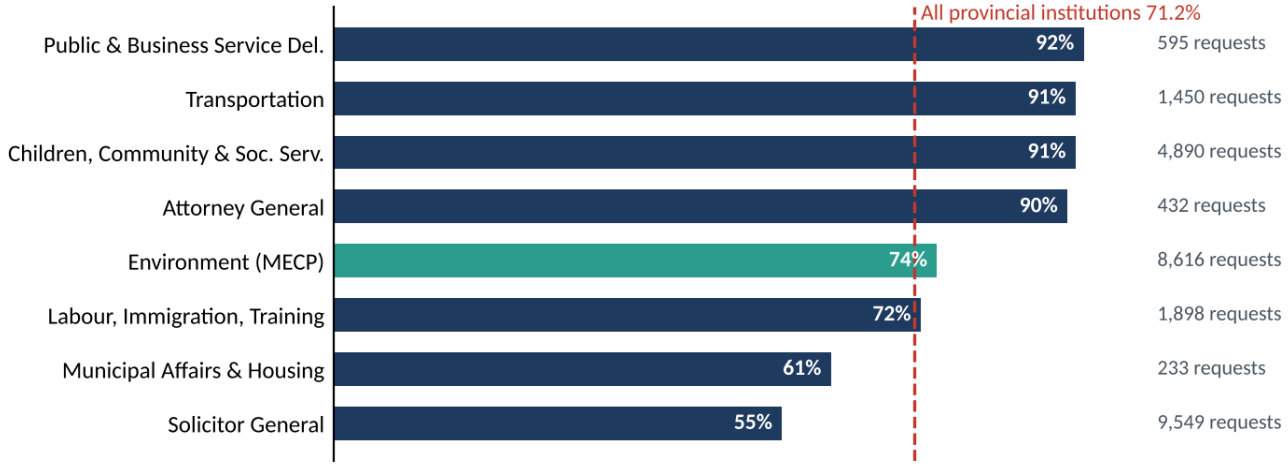
Ontario's provincial institutions received **31,042** FIPPA access requests in 2025, up 16% in a single year, and completed **27,256**. The share answered within 30 days fell from 78.1% to **71.2%**, and appeals to the Information and Privacy Commissioner (IPC) rose 38%. Pressure is concentrated: the Ministry of the Environment, Conservation and Parks (MECP) alone received **8,616** requests (27.8% of the provincial total).

This brief looks past the headline response rate. It asks where delays are concentrated, what requesters actually receive, and why disputes reach the IPC, then links each finding to a records and information management (RIM) practice a branch can control. It closes with the July 1, 2026 FIPPA amendments and an illustrative branch toolkit.

Key finding	Evidence
1. Volume is concentrated	MECP and the Solicitor General received 59% of 2025 requests and produced 78% of all files completed after 90 days.
2. Timeliness is slipping as volume grows	Province-wide, the 30-day rate fell from 78.1% to 71.2%. The Solicitor General fell from 76.2% to 55.0%; Labour, Immigration, Training and Skills Development received 124% more requests and completed only 62% of that volume.
3. MECP cleared a backlog, then held its ground	MECP completed 12,620 requests in 2023 against 7,532 received; its over-90-day share fell from 47.2% to 11.1% (2024) and 12.3% (2025).
4. One in five provincial outcomes is 'no records'	'No responsive records exist' made up 22% of provincial outcomes in 2025, against 8% for municipalities.
5. Process failures drive appeals	Of 2,296 access appeals opened in 2025, 28% concerned a deemed refusal (no decision on time) or an inadequate search.

1. Timeliness: 2025 performance by ministry

Share of completed requests answered within 30 days, with request volume. MECP is highlighted.



The 30-day rate alone hides two different problems. Some ministries are **falling behind on intake**: Labour, Immigration, Training and Skills Development saw requests more than double and completed only 62% of that

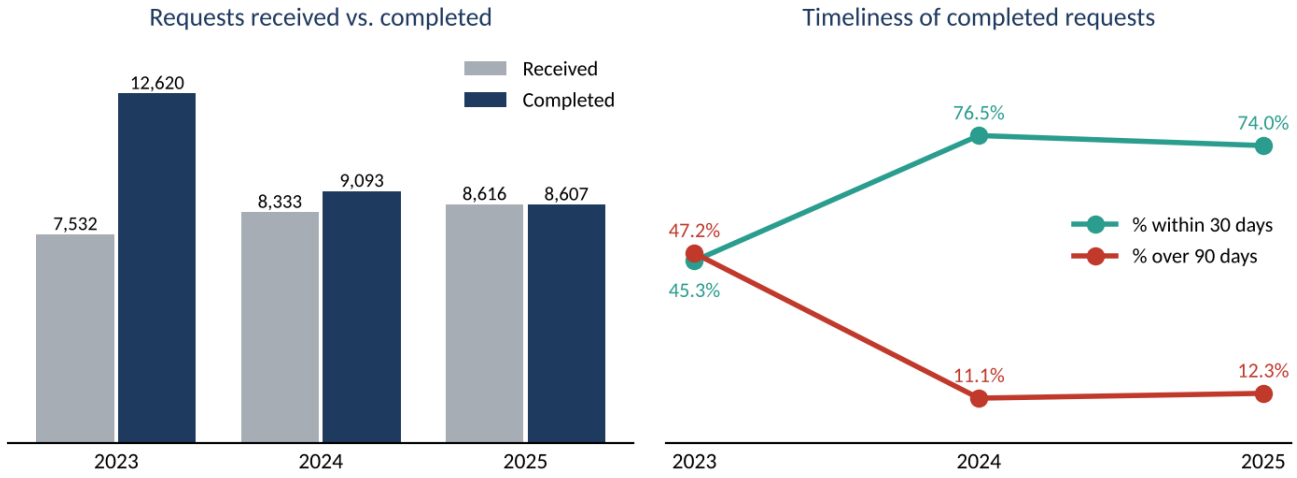
Source: IPC Statistical Reports 2023–2025; IPC FIPPA update guidance (2026); author analysis.

volume, while Transportation grew 37%. Others are **carrying old files**: the Solicitor General and MECP together account for 78% of the province's over-90-day completions. The first calls for intake triage and staffing; the second calls for better record retrieval on complex files.

Ministry	Received 2025	Change vs. 2024	Completed / received	Within 30 days	Share of provincial over-90-day files
Solicitor General	9,549	+12%	81%	55%	40.1%
Environment (MECP)	8,616	+3%	100%	74%	37.7%
Children, Community & Soc. Serv.	4,890	+13%	95%	91%	1.1%
Labour, Immigration, Training	1,898	+124%	62%	72%	4.5%
Transportation	1,450	+37%	73%	91%	1.0%
Public & Business Service Del.	595	-0%	92%	92%	0.2%
Attorney General	432	+4%	92%	90%	0.3%
Municipal Affairs & Housing	233	+1%	78%	61%	1.2%
All provincial institutions	**31,042**	**+16%**	**88%**	**71%**	**100%**

Completed / received above 100% means a ministry closed more files than it opened, usually by clearing a backlog. Over-90-day files are counted among requests completed in the year.

2. MECP spotlight: volume up, backlog contained

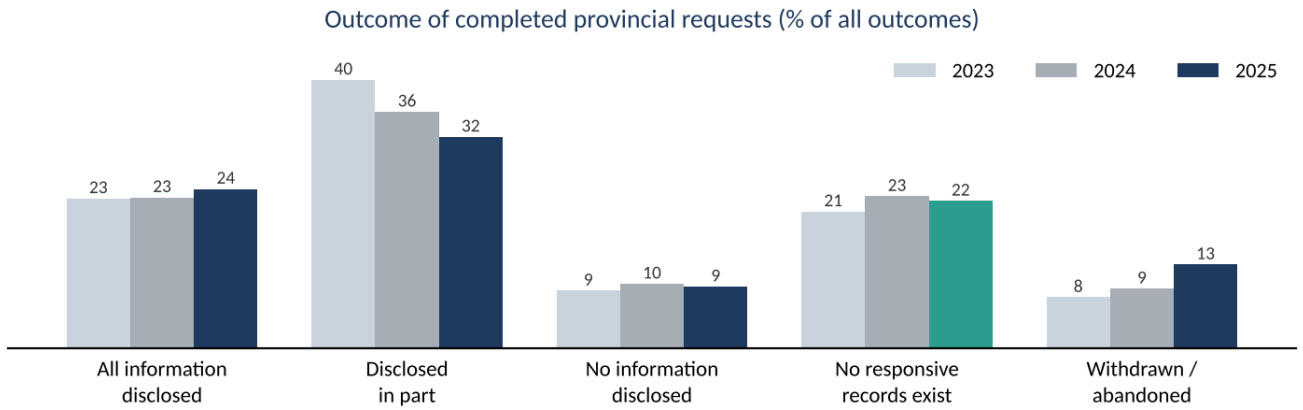


MECP has been one of the two highest-volume provincial institutions in each of the three years. In 2023 it completed far more requests than it received, which explains the low 30-day rate that year: much of its work was clearing older files. In 2023 MECP alone produced 88% of the province's over-90-day completions; by 2025 that share was 38%. Since 2024, over-90-day files have stayed near 11–12% of completions, but volume has kept rising (+14% from 2023 to 2025) and the 30-day rate eased from 76.5% to 74.0%. Holding that line under the new 45-business-day standard will depend on how quickly staff can locate records across approvals, compliance and stakeholder files.

Source: IPC Statistical Reports 2023–2025; IPC FIPPA update guidance (2026); author analysis.

MECP	2023	2024	2025
Requests received	7,532	8,333	8,616
Requests completed	12,620	9,093	8,607
Completed within 30 days	45.3%	76.5%	74.0%
Extended compliance	49.9%	84.5%	83.6%
Completed after 90 days	47.2%	11.1%	12.3%
Share of provincial requests	29.3%	31.0%	27.8%
Share of provincial over-90-day files	88.2%	50.7%	37.7%

3. Beyond timeliness: who asks and what they receive



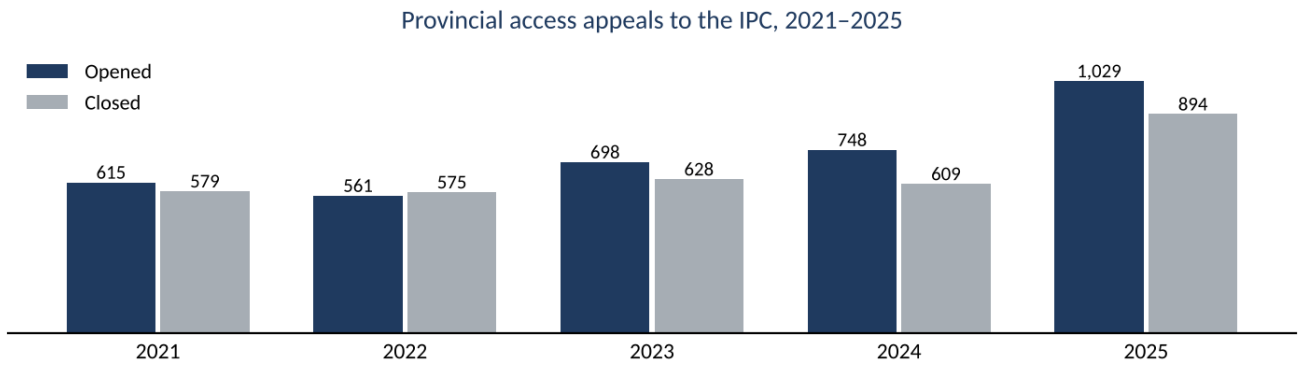
Across all provincial institutions, **22%** of 2025 outcomes were 'no responsive records exist', a share that has held between 21% and 23% for three years and is nearly three times the municipal rate (8%). Some of these are requests for records that were never created. Others may be records that exist but cannot be found under the way they were filed. A RIM program cannot fix the first, but it can shrink the second, and a documented search is also what the IPC expects to see if the result is appealed. Withdrawn or abandoned requests also rose from 8% to 13% of outcomes, which is worth monitoring now that fee estimates pause the clock.

Requester (provincial, completed)	2023	2024	2025
Individual/public	7,090 (23%)	7,372 (27%)	8,602 (29%)
Individual by agent	7,237 (23%)	7,236 (26%)	7,533 (26%)
Business	14,551 (47%)	10,631 (39%)	10,596 (36%)
Media	1,145 (4%)	1,092 (4%)	991 (3%)
All other sources	959 (3%)	1,013 (4%)	1,632 (6%)
Total	**30,982**	**27,344**	**29,354**

Business requesters remain the largest single group, at 36% of 2025 provincial completions, though their share has fallen from 47% in 2023 while requests from individuals rose. Business requests are likely to concern general records such as approvals, inspections and technical studies, the series where third-party (s.17) review is most likely.

Source: IPC Statistical Reports 2023–2025; IPC FIPPA update guidance (2026); author analysis.

4. Appeals: where delays and weak searches end up



Provincial appeals to the IPC rose from 748 in 2024 to **1,029** in 2025, and openings have outpaced closings every year since 2023. Two of the most common issues are directly within an institution's control: a **deemed refusal** means no decision was issued within the time limit, and a **reasonable search** appeal challenges whether the institution looked properly. Together they make up 28% of 2025 appeals.

Issue in access appeals opened in 2025	Appeals	Share	What a branch can control
Exemptions	957	42%	Consistent, well-documented exemption decisions
Deemed refusal	411	18%	Tracking deadlines, extensions and notices
Reasonable search	225	10%	A file plan and a recorded search log
Act does not apply / third-party / other	703	31%	Early third-party notice; clear jurisdiction checks

Issue counts cover provincial and municipal appeals combined; the IPC does not split them by jurisdiction.

5. What changed on July 1, 2026

The FIPPA amendments in force from July 1, 2026 give institutions more time but also more procedural steps. Each step assumes that records can be found and described quickly.

Change	What it means for a branch
General response time moves from 30 calendar days to 45 business days	More time on paper, but performance will be judged against a new standard; tracking must switch to business days.
A second time extension is allowed in defined cases (s.27(1.1))	Extensions must be justified and documented; search logs become evidence.
Staged access plans (s.24.1–24.2) for broad or high-volume requests	Records must be categorized well enough to promise a realistic release schedule.
Fee estimates required where fees exceed $25; the clock pauses until paid or waived	Accurate search-time estimates depend on knowing where records are.
Appeal period to the IPC becomes 30 business days	Decision letters and templates must be updated.

Source: IPC, 'Updates on obligations for provincial and municipal institutions' (2026). Requests received before July 1, 2026 follow the earlier rules.

Source: IPC Statistical Reports 2023–2025; IPC FIPPA update guidance (2026); author analysis.

6. Recommendations for a branch RIM program

Most of the time in an access request goes into finding records. The faster a branch can locate, classify and release them, the more of the statutory window is left for review and consultation. Each recommendation below comes with an indicator the branch can track against a 2025 baseline.

Recommendation	How the toolkit supports it	Indicator (2025 provincial baseline)
1. Classify records by function, not by owner	A 14-series file plan across administration, finance, approvals, compliance, information requests and stakeholder relations.	'No responsive records' share of outcomes (22%)
2. Flag FIPPA-sensitive series in advance	The retention crosswalk lists likely considerations, e.g. s.17 third-party information in technical studies and s.21 personal privacy in inquiry files.	Share of requests needing third-party notice; exemption appeals (42% of appeals)
3. Standardize the request workflow	A nine-step workflow aligned with the 2026 rules, from logging and fee estimates to third-party notice and decision letters.	Completed within the statutory time (71% under the old 30-day rule); deemed refusal appeals
4. Document every search	A search log template within the workflow: locations, terms, staff and time spent.	Reasonable search appeals (10% of appeals)
5. Train staff on the basics	An eight-module checklist covering the Archives and Recordkeeping Act, 2006, transitory records, FIPPA searches and privacy breaches.	Training completion rate; files completed after 90 days

Toolkit extract: illustrative file plan and retention

Code	Record series	Trigger	Illustrative period	Disposition	FIPPA consideration
APP-03	Issued approvals	Expiry or revocation	Expiry + 20 yrs	Archives of Ontario (if designated)	s.17 third-party information
CMP-02	Incidents and enforcement	File closed	Closure + 15 yrs	Review for archival value	s.14 law enforcement; s.21
INF-01	FIPPA access requests	Request closed	Closure + 2 yrs	Destroy	s.21 personal privacy
ADM-03	Staff training records	Employee departure	Departure + 2 yrs	Destroy	s.21 personal privacy

Retention periods are placeholders for design purposes. Under the Archives and Recordkeeping Act, 2006, public records may be disposed of only in accordance with approved records schedules; every line must be confirmed against the applicable OPS common or ministry schedule.

Method and limits

Ministry figures are transcribed from the IPC's response-rate tables for provincial institutions (excluding colleges, universities and hospitals) and checked against recalculated rates (all within 1 percentage point, reflecting IPC rounding). Percentages are shares of completed requests. The scope is the eight ministries reported in all three years; the Ministry of Health is excluded because it does not appear in the 2024 FIPPA table. Totals use each table's total row, which differs slightly from the headline figures on the IPC summary pages.

Requester and outcome figures (section 3) cover *all* provincial institutions, including colleges, universities and hospitals, and are not broken down by ministry. A single request can have more than one outcome, so outcome shares are calculated on total outcomes. Appeal issue counts combine provincial and municipal appeals. Interpretations of why records were not found are hypotheses, not findings. The file plan, retention crosswalk, workflow and training checklist are illustrative designs for a hypothetical branch, not descriptions of any ministry's actual practice.

Sources: IPC 2023 Statistical Report; IPC 2024 Statistical Report; IPC 2025 Statistical Report; IPC, Updates on obligations for provincial and municipal institutions (2026).

Source: IPC Statistical Reports 2023–2025; IPC FIPPA update guidance (2026); author analysis.